

SENATE No. 1201

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act maintaining protective orders.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 1201

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1201) of Michael O. Moore for legislation to maintain protective orders after plaintiff's death. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1070 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act maintaining protective orders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of chapter 209A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking subsection (h) and inserting in place thereof the following
3 subsection:-

4 (h) ordering the defendant to refrain from abusing or contacting the plaintiff's child, or
5 child in plaintiff's care or custody, unless authorized by the court, which shall survive the death
6 of the plaintiff until such order expires or is vacated by the court;.